

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2035

By: Archer

AS INTRODUCED

An Act relating to professions and occupations;  
amending 59 O.S. 2021, Section 396.2, which relates  
to Funeral Services Licensing Act definitions;  
defining terms; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 396.2, is  
amended to read as follows:

Section 396.2. As used in the Funeral Services Licensing Act:

1. "Embalmer" means a person who disinfects or preserves dead  
human remains, entire or in part, by the use of chemical substances,  
fluids or gases in the remains, or by the introduction of same into  
the remains by vascular or hypodermic injection, or by direct  
application into organs or cavities;

2. "Funeral director" means a person who:

a. is engaged in or conducts or represents themselves as  
being engaged in preparing for the burial or disposal

1 and directing and supervising the burial or disposal  
2 of dead human remains,

3 b. is engaged in or conducts or represents themselves as  
4 being engaged in maintaining a funeral establishment  
5 for the preparation and the disposition, or for the  
6 care of dead human remains,

7 c. uses, in connection with the name of the person or  
8 funeral establishment, the words "funeral director" or  
9 "undertaker" or "mortician" or any other title  
10 implying that the person is engaged as a funeral  
11 director,

12 d. sells funeral service merchandise to the public, or

13 e. is responsible for the legal and ethical operation of  
14 a crematory;

15 3. "Funeral establishment" means a place of business used in  
16 the care and preparation for burial, commercial embalming, or  
17 transportation of dead human remains, or any place where any person  
18 or persons shall hold forth and be engaged in the profession of  
19 undertaking or funeral directing;

20 4. "Apprentice" means a person who is engaged in learning the  
21 practice of embalming or the practice of funeral directing, as the  
22 case may be, under the instruction and personal supervision of a  
23 duly licensed embalmer or a duly licensed funeral director of and in  
24 the State of Oklahoma, pursuant to the provisions of the Funeral

1 Services Licensing Act, and who is duly registered as such with said  
2 Board;

3 5. "Board" means the Oklahoma Funeral Board;

4 6. "Directing a funeral" or "funeral directing" means directing  
5 funeral services from the time of the first call until final  
6 disposition or release to a common carrier or release to next of kin  
7 of the deceased or the designee of the next of kin;

8 7. "First call" means the beginning of the relationship and  
9 duty of the funeral director to take charge of dead human remains  
10 and have such remains prepared by embalming, cremation, or  
11 otherwise, for burial or disposition, provided all laws pertaining  
12 to public health in this state are complied with. First call does  
13 not include calls made by ambulance, when the person dispatching the  
14 ambulance does not know whether or not dead human remains are to be  
15 picked up;

16 8. "Personal supervision" means the physical presence of a  
17 licensed funeral director or embalmer at the specified time and  
18 place of the providing of acts of funeral service;

19 9. "Commercial embalming establishment" means a fixed place of  
20 business consisting of an equipped preparation room, and other rooms  
21 as necessary, for the specified purpose of performing preparation  
22 and shipping services of dead human remains to funeral  
23 establishments inside and outside this state;

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1        10. "Funeral service merchandise or funeral services" means  
2 those products and services normally provided by funeral  
3 establishments and required to be listed on the General Price List  
4 of the Federal Trade Commission, 15 U.S.C., Section 57a(a),  
5 including, but not limited to, the sale of burial supplies and  
6 equipment, but excluding the sale by a cemetery of lands or  
7 interests therein, services incidental thereto, markers, memorials,  
8 monuments, equipment, crypts, niches or outer enclosures;

9        11. "Outer enclosure" means a grave liner, grave box, or grave  
10 vault;

11        12. "Funeral director in charge" means an individual licensed  
12 as both a funeral director and embalmer designated by a funeral  
13 service establishment, commercial embalming establishment, or  
14 crematory who is responsible for the legal and ethical operation of  
15 the establishment and is accountable to the Board;

16        13. "Authorizing agent" means a person legally entitled to  
17 order the cremation or final disposition of particular human remains  
18 pursuant to Section 1151 or 1158 of Title 21 of the Oklahoma  
19 Statutes;

20        14. "Cremation" means the technical process, using heat and  
21 flame, or heat and pressure, that reduces human remains to essential  
22 elements, including bone fragments. The reduction takes place  
23 through heat and evaporation. Cremation shall include, but not be  
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1 limited to, the processing and pulverization of the bone fragments,  
2 or through alkaline hydrolysis;

3 15. "Crematory" means a structure containing a furnace or  
4 alkaline hydrolysis vessel used or intended to be used for the  
5 cremation of human remains. The term includes a facility that  
6 cremates human remains through alkaline hydrolysis; ~~and~~

7 16. "Alkaline hydrolysis" means the reduction of human remains  
8 to bone fragments and essential elements in a licensed crematory  
9 using heat, pressure, water and base chemical agents; and

10 17. "Transportation protection agreement" means an agreement  
11 that primarily provides for the coordination and arranging of all  
12 professional services related to the preparation for the purpose of  
13 transportation and subsequent transportation of human remains or  
14 cremated remains. A transportation protection agreement shall not  
15 constitute funeral service merchandise or funeral services. A  
16 transportation protection agreement shall be exempt from the  
17 requirements of this chapter and Title 36 of the Oklahoma Statutes  
18 and the Oklahoma Insurance Code.

19 SECTION 2. This act shall become effective November 1, 2025.  
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